

#	Case Name	Tentative Ruling
101	Aguilar v PSMG, Inc., 2025-01526687	Motion to Compel Arbitration – GRANTED Defendant, PSMG, Inc. dba Pacwest Security Services (“Defendant”), petitions for an order compelling arbitration of all causes of action and to stay the instant action pending the outcome of the arbitration. The Petition is GRANTED. “ ‘ “California statutes create a ‘summary proceeding’ for resolving petitions or motions to compel arbitration. [Citation.] ‘The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.’ [Citation.]” [Citation.]’ [Citations.]” (Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 492.) “Federal and California law treat valid arbitration agreements like any other contract and favor their enforcement. [Citations.] The California Arbitration Act (Code Civ. Proc., § 1280 et seq.; CAA) expresses a “ ‘strong public policy in favor of arbitration as a speedy and relatively inexpensive means of dispute resolution.’ ” [Citations.]” (Ibid.) “A written agreement to submit a controversy to arbitration is valid, enforceable, and irrevocable, ‘save upon such grounds as exist for the revocation of any contract.’ [Citation.] Unconscionability provides such grounds. [Citation.]” (Ibid.) Here, Defendant attaches as Exhibit A, a copy of a document entitled, “Agreement to Arbitrate All Covered Claims” that was signed by the parties on August 1, 2022 (the “Arbitration Agreement”). The Arbitration Agreement states, in part: 1. Final and Binding Arbitration: Any and all claims, controversies or disputes ("Disputes")

relating to any aspect of Employee's employment with Company (pre-hire through post-termination), which Company may have against Employee, or which Employee may have against Company (which includes any subsidiary, parent or related entity, and any officer, director, shareholder, employee, representative or agent), shall be resolved through final and binding arbitration. Company and Employee each acknowledge that this means that Company and Employee are relinquishing the right to a court trial or jury trial of any Dispute, except as otherwise provided in this Agreement.

(Ex. A, Arbitration Agreement, ¶ 1.)

On November 19, 2025, Plaintiff, Victor Vargas Aguilar, filed the Complaint in this action, asserting claims for 1) Meal and Rest Break Violations of Labor Code § 226.7; 2) Failure To Pay Overtime & Wages; 3) Failure to Pay All Compensation at Termination, Waiting Time Penalties; 4) Failure to Provide Employment Records in Violation of Cal. Labor Code § 1198.5 et seq.; 5) Violation of Whistleblower Protection of Labor Code § 1102.5; 6. Retaliation in Violation of Gov. Code § 12940(h); 7) Wrongful Termination; and 8) Violation of Business & Professions Code § 17200 et seq. All claims arise out of Plaintiff's employment with Defendant as a security guard.

Based on the foregoing, Defendant meets its burden of proving the existence of an arbitration agreement by the preponderance of the evidence, as between it and Plaintiff, that applies to the claims in this action.

Plaintiff's opposition contends that the Arbitration Agreement, and in particular, the delegation clause, are both procedurally and substantively unconscionable and cannot be enforced.

"The parties to an arbitration agreement can agree in a delegation provision 'to arbitrate "gateway" questions of "arbitrability," such as whether the parties have agreed to arbitrate or whether their agreement covers a particular controversy.' [Citation.] An agreement to arbitrate a gateway issue—otherwise known as a delegation provision—is simply an additional,

antecedent agreement the party seeking arbitration asks ... [a] court to enforce,’ [Citations.]” (J.R. v. Electronic Arts Inc. (2024) 98 Cal.App.5th 1107, 1114.) “A party opposing enforcement of a delegation provision under the FAA must ‘challenge[] the delegation provision specifically.’ [Citations.]” (Ibid.) “Absent such a challenge, a court must treat the delegation provision as valid and enforce it, ‘leaving any challenge to the validity of [the arbitration agreement or] the [a]greement as a whole for the arbitrator.’ [Citation.]” (Ibid.)

California courts look to federal law when deciding arbitration issues under state law, have “looked to the FAA when considering delegation clauses [citation], and have long held that the rules governing these clauses are the same under both state and federal law. [Citations.]” (Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 239-240.) Parties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement. (Id. at p. 241.) The court may consider the validity of the delegation clause. (Id. at p. 241, fn. 4.) For a delegation clause to be effective two pre-requisites must be met: (1) the language of the clause must be clear and unmistakable, and (2) the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability. (Id. at p. 242.) The party seeking to enforce a delegation clause must show that it is clear and unmistakable; silence or ambiguity is insufficient. (Ibid.)

“[A] court must look to the precise nature of the claim that the party resisting arbitration is making. If it is claiming that it never agreed to the arbitration clause at all—e.g., if it is claiming forgery or fraud in the factum—then the court must consider that claim. On the other hand, if it is not denying that it agreed to the arbitration clause, but instead is claiming some other defense to enforcement of the arbitration clause—e.g., illegality or fraud in the inducement—then the court must enforce the ‘arbitrability’ portion of the arbitration clause by compelling the parties to submit that defense to arbitration.” (Bruni v. Didion (2008) 160 Cal.App.4th 1282, 1287.)

Here, the Arbitration Agreement states, in relevant part:

5. Enforceability of this Agreement: In the event of a dispute related to the validity, enforceability, formation or interpretation of this Agreement, in whole or in part, the arbitrator shall have the sole and exclusive authority to consider and resolve the dispute. This includes, but is not limited to, a claim that all or any portion of this Agreement is void, voidable or otherwise unenforceable based on unconscionability or any other basis. If any provision of this Agreement is determined to be void, voidable or unenforceable, in whole or in part, the remainder of the Agreement shall remain in full force and effect.

(Ex. A, Arbitration Agreement, ¶ 5.)

The language in the Arbitration Agreement is clear and unmistakable that the parties agreed to delegate questions regarding the enforcement of the Arbitration Agreement, and specifically whether the Arbitration Agreement is unenforceable based on unconscionability, to the arbitrator.

Plaintiff here does not deny that he agreed to the Arbitration Agreement, or the existence of the Arbitration Agreement. To the extent that Plaintiff is raising a defense to enforcement of the Arbitration Agreement on the grounds that it is unconscionable, that is for an arbitrator to decide. However, the Court may consider Plaintiff's argument that the delegation clause itself is not valid and is unconscionable.

Unconscionability has a procedural and a substantive element: the procedural element focuses on the existence of oppression or surprise and the substantive element focuses on overly harsh or one-sided results. (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114; Nyulassy v. Lockheed Martin Corp. (2004) 120 Cal.App.4th 1267, 1281 ("Nyulassy".) An agreement must be both procedurally and substantively unconscionable to permit the court to refuse to enforce the agreement or a given clause as unconscionable. (Stirlen v. Supercuts, Inc. (1997) 51 Cal.App.4th 1519, 1533.) "[T]hese elements, however,

need not be present in the same degree. ‘[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.’” (Mercuro v. Super. Ct. (2002) 96 Cal.App.4th 167, 174.)

Plaintiff contends that the Arbitration Agreement is procedurally unconscionable as an adhesion contract since it was a mandatory condition of employment.

In reply, Defendant asserts that there is no evidence that Plaintiff’s signing of the Arbitration Agreement was a condition of his employment, and that the Arbitration Agreement itself spells out the employee’s rights with respect to signing the agreement.

“A procedural unconscionability analysis ‘begins with an inquiry into whether the contract is one of adhesion.’ [Citation.]” (OTO, L.L.C. v. Kho (2019) 8 Cal. 5th 111, 126 (“Oto”).) An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power ‘on a take-it-or-leave-it basis.’ [Citations].” (Ibid.) A contract of adhesion is “a ‘standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ [Citation.]” (Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 492.)

“When arbitration is a condition of employment, there is inherently economic pressure on the employee to accept arbitration. This alone is a fairly low level of procedural unconscionability. [Citation.]” (Cisneros Alvarez v. Altamed Health Services Corporation (2021) 60 Cal.App.5th 572, 591.)

Plaintiff presents no evidence to support the assertion that this Arbitration Agreement was a mandatory condition of employment. As such, Plaintiff has not met his burden of proving unconscionability by a preponderance of the evidence, and the Court need to evaluate substantive unconscionability. (See Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 494 [“A court should consider substantive unconscionability only after procedural unconscionability has been established”].)

		Based on the foregoing, the Court GRANTS the petition to compel arbitration and stays this action pending completion of arbitration. The Court sets an ADR Review hearing for June 7, 2027, 1:30 p.m., in Department N14. Defendant to give notice.
102	Cabaccang v. Costco Wholesale Corp., 2026-01560439	Demurrer – MOOT
103	Cloutier v. Khedraki, 2025-01503041	Motion re Approval of Settlement – CONTINUED OSC re Dismissal on Settled Case – CONTINUED Defendants Ousama Khedraki and Dima Khedraki (together, “Defendants”) move for an order approving the settlement reached between the parties. An enforceable settlement of an action involving a person lacking the capacity to make decisions can only be consummated with court approval. (Code Civ. Proc., § 372(a)(3) [guardian ad litem appearing for person who lacks legal capacity to make decisions may, with approval of the court, compromise the same].) A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court, rules 7.950, 7.950.5, 7.951, and 7.952. A petition for court approval of a compromise or settlement of a pending action to which a person with a disability is a party must be verified by the petitioner and, except as provided in rule 7.950.5 (which is not applicable here), submitted on form MC-350. (Cal. Rules of Court, rule 7.950.) Here, Defendants’ Motion is not verified or on the required form. Thus, the hearing on Defendants’ Motion and on the OSC re Dismissal is CONTINUED to September 28, 2026, at 9:00 a.m., in Department N14. Defendants are ORDERED to file and serve the proper forms no later than 16 days before the continued hearing date.